

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 03/11/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C24-02490

CASE NAME: SCOTT DINSDALE VS. CARDIGAN, INC.

***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This case management conference ("CMC") trails the discovery motion to be heard on line 20. If the motion is unopposed, no appearance is required. The CMC will be continued to August 3, 2026 at 8:30 a.m if the motion is unopposed.

2. 9:00 AM CASE NUMBER: C25-00687

CASE NAME: MIHAELA CROSSMAN VS. GREG WALLACE

***FURTHER CASE MANAGEMENT CONFERENCE TO TRAIL SET ASIDE VOID DEFAULT AND QUASHING SUMMONS FOR LACK OF PERSONAL JURISDICTION**

FILED BY:

TENTATIVE RULING:

Plaintiff Mihaela Crossman dismissed this case without prejudice on March 3, 2026. This CMC is vacated. Line 15 is vacated. No appearance is required at the hearing on March 11, 2026.

3. 9:00 AM CASE NUMBER: C25-00711

CASE NAME: ROBERT MURLEY VS. ROBERT RICHIE

***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This CMC is continued to August 3, 2026 at 8:30 a.m. No appearance is required on March 11, 2026.

Law & Motion

4. 9:00 AM CASE NUMBER: C23-00908

CASE NAME: ABDO NASSER VS. DOES 1 TO 50

***HEARING ON MOTION IN RE: LEAVE TO FILE CROSS-COMPLAINT**

FILED BY: T-MOBILE USA, INC.

TENTATIVE RULING:

Summary

Defendant T-Mobile USA, Inc. and T-Mobile West LLC's ("T-Mobile") Motion for Leave to File Cross-Complaint filed on December 4, 2025 is unopposed and is **granted** as set forth herein. No appearance is required at the hearing on March 11, 2026.

Defendant MW Cell REIT 1 LLC ("MWC") filed a notice of Non-Opposition. Plaintiff Abdo Nasser ("Plaintiff") did not file a timely opposition.

Analysis

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure of any party to timely oppose this motion is a deemed to be their consent to the granting of this motion.

Ruling

1. T-Mobile's Motion for Leave to file Cross-Complaint against MWC and Plaintiff is **granted**.
2. The Court approves the form of the Proposed order lodged on November 21, 2025, with the following modification: The proposed complaint submitted as Exhibited M to the Declaration

of Jill Jaffe shall be filed with the Court and served no later than March 20, 2026. MWC and Plaintiff shall file a responsive pleading no later than thirty (30) days from the date of service.

3. T-Mobile's counsel shall prepare a proposed order that conforms to the foregoing and e-file it with Court no later than five (5) days from the date of the hearing.
4. No appearance is required at the March 11, 2026 hearing.

5. 9:00 AM CASE NUMBER: C23-01845

CASE NAME: RAUL INIGUEZ VS. FIDENCIO GARCIA

HEARING ON SUMMARY MOTION

FILED BY: ACME BUILDERS, INC.

TENTATIVE RULING:

Before the Court is a motion for summary judgment/adjudication filed by defendant Acme Builders, Inc. On the Court's own motion, the hearing on the motion is **continued to 9:00 a.m. on March 18, 2026.**

6. 9:00 AM CASE NUMBER: C23-02327

CASE NAME: TORSTEN BRUNE VS. ACE ROBEY

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**

FILED BY: ROBEY, ACE

TENTATIVE RULING:

Summary

Plaintiff's counsel, Newmeyer & Dillion LLP, by and through Tara C. Dudum, Esq. and Madison J. Rolapp, Esq., filed a Motion to Be Relieved as Counsel for Plaintiff Ace Robey ("Motion"). The Motion is **granted** as set forth herein.

Background

This is a breach of contract case where Plaintiff Ace Robey alleges a breach of contract for commercial space. There are also certain cross-allegations involving a 1972 Fiat car.

Plaintiff's counsel, Tara C. Dudum, filed a Motion to Be Relieved as Counsel on December 12, 2026, supported by her declaration claiming that "Irreconcilable differences have arisen resulting in a breakdown of attorney-client communications making it unreasonably difficult to continue representing the client." The trial for this case is set for July 20, 2026. An issue conference is scheduled for June 4, 2026.

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Defendant's Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for

withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Plaintiff's Counsel. The Court acknowledges that the prejudice to Plaintiff is minimal, as there is ample time for Plaintiff to retain trial counsel, or, in the alternative, to represent himself.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record. The makes the following orders:

1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted on December 12, 2025. The withdrawal is effective immediately.
3. Defendant's Counsel is ordered to serve a copy of the Order (MC-053) to Plaintiff by mail at his last known address, along with a change of address form, Judicial Council Form MC-040, instructing the former client to fill-out and file the change of address form with the Court.
4. Defendant's counsel shall file a proof of service form indicating that the client was served with the Court's Order (MC-053) and the Change of Address form (MC-040).

7. 9:00 AM CASE NUMBER: C23-02436

CASE NAME: DENNIS WANKEN VS. NAHLA DROUBI

***HEARING ON MOTION IN RE: CONTINUE TRIAL**

FILED BY: WANKEN, DENNIS

TENTATIVE RULING:

Summary

This Motion is related to Lines 8 and 9. This tentative ruling is for Line 7 only. Plaintiffs and Cross-Defendants Dennis Wankin and Eleni Wanken's Motion to Continue the trial is **granted** as set forth in this order. Counsel are ordered to appear at the hearing on March 11, 2026 for a Trial Setting Conference.

Background

This lawsuit pertains to joint easement that relates to properties owned by both parties in Moraga, California, and the alleged breach of a maintenance agreement of a surface roadway on the easement.

On January 6, 2026, Plaintiff and Cross Defendant Dennis Wankin and Eleni Wanken ("Plaintiffs") filed this Motion to Continue the Trial ("Motion") of this action which is currently set for April 6, 2026. The Motion is supported by a Memorandum of Points and Authorities and Declaration of Counsel Gary Sloboda asserting good cause due to cross-motions for leave to amend operative pleadings filed by both parties. Specifically,

1. Defendant has filed a motion for leave to amend her First Amended Cross-Complaint to add

- an eighth cause of action and supporting allegations against Plaintiffs for slander of title.
2. Plaintiffs have filed a motion for leave to amend their Complaint to add a fourth and fifth cause of action and supporting allegations against Defendant for trespass and statutory contribution, respectively.
 3. If Defendant is granted leave to amend her First Amended Cross-Complaint, Plaintiff intends to demur to her new eighth cause of action for slander of title as deficiently pled;
 4. If the Court grants the parties' motions for leave, the new causes of action and factual allegations will require new and further discovery;
 5. The parties are currently conducting written discovery, including meeting and conferring over Defendant's purportedly deficient discovery responses, which written discovery and discovery disputes must be resolved prior to the taking of percipient and party depositions, none of which have yet been taken; and
 6. Plaintiffs recently associated new counsel into the case, who will likely require additional time to prepare for the trial.

On February 26, 2026, Defendant and Cross-Complainant Nahla Droubi ("Defendant") filed an opposition to this Motion, asserting that continuance of the trial is prejudicial to Defendant and that Plaintiff failed to prosecute this matter with requisite diligence. Defendant asserts that this case was initiated on September 27, 2023. After two years of litigation, Plaintiff sought only recently to amend their complaint. Furthermore, Plaintiff only sought continuance of this trial in January of this year, and disclosed the existence of potential insurance coverage and insurance counsel who will be assisting in this case.

In a reply brief filed on March 4, 2026, Plaintiffs re-assert grounds under Cal. Rules of Court (CRC) 3.1332(c), which sets forth good cause for trial continuance. Plaintiffs deny the contention that they failed to act with diligence. Furthermore, Plaintiffs assert that there is no substantial prejudice to Defendant in granting this continuance.

Analyses

A trial court may grant a trial continuance upon a showing of good cause. (CRC Rule 3.1332(c)). Good cause is demonstrated by a factual showing stating the reasonable grounds for the order sought. The decision whether to grant a motion for continuance is within the trial court's discretion. *Color-Vue, Inc. v. Abrams* (1996) 44 Cal.App.4th 1599, 1603; *Jurado v. Toys "R" Us* (1993) 12 Cal.App.4th 1615, 1617. However, "the refusal of a continuance which has the practical effect of denying the applicant a fair hearing is reversible error." *Oliveros v. County of Los Angeles* (2004) 120 Cal.App.4th 1389, 1395. "Such decisions must be made in an atmosphere of substantial justice." (Id.)

Pursuant to CRC Rule No. 3.1332, "To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm. *All parties and their counsel must regard the date set for trial as certain.*" (Emphasis added). However, California Rules of Court (CRC) Rule nos. 3.1332(c) and 3.1332(d) provide trial courts with factors that should be considered as grounds for continuance. The applicable provisions of this rule state:

- (c) Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative

showing of good cause requiring the continuance. Circumstances that may indicate good cause include: []

(6) A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or

(7) A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial.

(d) Other factors to be considered

In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include:

(1) The proximity of the trial date;

(2) Whether there was any previous continuance, extension of time, or delay of trial due to any party;

(3) The length of the continuance requested;

(4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;

(5) The prejudice that parties or witnesses will suffer as a result of the continuance;

(6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay;

(7) The court's calendar and the impact of granting a continuance on other pending trials;

(8) Whether trial counsel is engaged in another trial;

(9) Whether all parties have stipulated to a continuance;

(10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and

(11) Any other fact or circumstance relevant to the fair determination of the motion or application.

In considering the foregoing authorities and rules, the Court finds good cause to continue this trial. This is the first continuance sought. The reasons for continuance is premised on the pending cross-motions to amend the operative pleadings, which, if granted at the concurrent hearings of those motions on March 11, 2026, would require the Parties to conduct additional discovery and further preparation for trial. This case will not be ready for trial in a month. Moreover, associated counsel for Plaintiffs will require additional time to consider coverage for claims asserted by Defendant and to prepare for trial. The potential existence of coverage for Defendant's claims may change the dynamics of this case and offer opportunities for settlement, which is good reason to continue the

trial.

Ruling

Plaintiffs' Motion to Continue the trial is **granted**. The current trial date of April 6, 2026 is **vacated**. The Parties are ordered to appear at the hearing on March 11, 2026 for a trial setting conference trailing the cross-motions for leave to file amended complaint and cross-complaint.

8. 9:00 AM CASE NUMBER: C23-02436
CASE NAME: DENNIS WANKEN VS. NAHLA DROUBI
***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**
FILED BY: WANKEN, DENNIS
TENTATIVE RULING:

Plaintiffs Dennis and Eleni Wanken's motion for leave to file a first amended complaint is **granted**. The Wankens may file and serve their FAC by March 25, 2026.

The Wankens filed this case on September 27, 2023, seeking payment from Droubi for half the cost of repaving their shared private roadway, which is part of an express easement. In the original complaint, the Wankens sued for (1) breach of written contract, (2) breach of contract implied in fact and (3) unjust enrichment. In this motion, the Wankens seek leave to add two new causes of action: trespass and contribution based upon Civil Code section 845(b). The contribution claim is also seeking half the cost of repaving their shared driveway. The trespass claim adds new facts, alleging that Droubi and her family and guests walk around the express easement on a footpath and use Wankens' property without permission.

The Wankens' attorney explains that his law firm was brought into this case on November 14, 2025, and upon their review of the case, the law firm promptly found two additional causes of action to include in their case. They attempted to meet and confer on amending the complaint on November 24 and December 3, 2025, but Droubi did not agree to the amendments. (Sloboda dec. ¶¶ 5-7.) The Wankens filed this motion for leave to amend on December 5, 2025. The Wankens filed an attorney declaration that explains the changes to the complaint and attaches a redline version of the proposed amendments. The Wankens' motion is compliant with California Rules of Court, rule 3.1324.

There is "a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]..." (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is " 'inexcusable delay and probable prejudice to the opposing party' ... [Citation.]" (*Ibid*; see also, *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 (even assuming there is unreasonable delay, "it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.")).

Droubi opposes this motion, arguing that these amendments should have been much earlier in the case. It appears that the facts supporting the proposed amendments could have been included

in the original complaint or soon thereafter and it is unclear why the amendment was not sought earlier. The Wankens' current attorneys acted quickly in seeking to amend the complaint, but there is still unreasonable delay from September 2023 through November 2025.

Unreasonable delay alone is not enough to deny a motion for leave to amend. In order to deny leave to amend, there must also be prejudice. The contribution claim includes a new legal theory, but is based upon the same essential facts as the original complaint. Further, while the trespassing claim is new to the complaint, a similar issue regarding the footpath was already included in Droubi's cross-complaint where she alleges that the Wankens are interfering with her use of the path. Thus, the amendments are likely to result in little, if any, additional discovery, and they do not drastically change the scope of this case. Further, while trial is currently set to begin in April 2026, the Court has granted the Wankens' trial continuance and thus, there will be sufficient time to engage in motion practice related to these new claims. The Court finds that there is no prejudice to Droubi in allowing these amendments.

9. 9:00 AM CASE NUMBER: C23-02436
CASE NAME: DENNIS WANKEN VS. NAHLA DROUBI
***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED CROSS-COMPLAINT**
FILED BY: DROUBI, NAHLA
TENTATIVE RULING:

Cross-Complainant Nahla Droubi's motion for leave to file a second amended cross-complaint is **continued** to April 8, 2026.

The Wankens opposed Droubi's motion for leave to amend, arguing that the motion does not comply with California Rules of Court, rule 3.1324(a)(2)-(3) and (b). Droubi's motion does not specify each proposed amendment by listing the page, paragraph, and line number where the additional allegations are located or providing a redline version of the complaint, which provides the same information. (Rule 3.1324(a)(3).) Further, Droubi's motion did not include the required declaration explaining (1) the effect of the proposed amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Rule 3.1324(b).) Compliance with these rules is mandatory.

Droubi shall file and serve a redlined version of the proposed second amended complaint showing all amendments and a declaration compliant with rule 3.1324(b) by March 18, 2025. The Wankens may file and serve an opposition by March 25, 2026. Droubi may file a reply by April 1, 2026.

10. 9:00 AM CASE NUMBER: C23-02445
CASE NAME: DARSHAN SINGH VS. RUDOLPH SANDOVAL
***HEARING ON MOTION IN RE: PROTECTIVE ORDER**
FILED BY: SANDOVAL, RUDOLPH VALENTINO
TENTATIVE RULING:

This hearing was **vacated** at the Case Management Conference on February 26, 2026 due to the

recent bankruptcy filing of Defendant. No appearance is required on March 11, 2026.

11. 9:00 AM CASE NUMBER: C23-02906

CASE NAME: KATELYN SCHAEFER VS. BRYAN DOVE

***HEARING ON MOTION IN RE: SET ASIDE SANCTIONS ORDER AND TO ENFORCE MEDIATED SETTLEMENT AGREEMENT**

FILED BY:

TENTATIVE RULING:

Summary

There are two motions on calendar in the case *Katelyn Schaefer v. Bryan Dove*. This ruling relates to Line 11, which is Defendant Roger Boaz's ("Boaz") Motion to Set Aside Sanctions and to Enforce the Mediated Settlement Agreement filed on November 13, 2025, Line 11. The Court **denies** Defendant Roger Boaz's Motion to Set Aside Sanctions and Enforce Mediated Settlement Agreement.

For Defendant Roger Boaz's Motion for Sanctions Against Opposing Counsel filed on November 13, 2025, see tentative ruling on Line 12, below.

Background

This case presents a complex history of procedural actions taken by Defendant Dove and Cross-Defendant Boaz. In summary, in this litigation, Plaintiff Katelyn Schaefer ("Plaintiff"), who was 16 years old at the time, attended a party on May 26, 2023 at the residence of Defendant Bryan Dove ("Dove") and David Dove in Discovery Bay, California. Plaintiff alleged that at the party, Defendants served alcohol to minors, including to Plaintiff. The complaint further alleged that Defendants provided Katelyn Schaefer with multiple alcoholic drinks, to the point of severe intoxication. As a result, Katelyn Schaefer suffered a fall, hit her head, sustained a cut above her left eyebrow, and lost consciousness. Subsequently as a result of her injuries, Katelyn Schaefer was transported by helicopter ambulance to a trauma center. Ms. Schaefer was treated and was ultimately diagnosed with alcoholic intoxication, concussion with loss of consciousness, laceration of left eyebrow, and acute hypokalemia. Ms. Schaefer's blood alcohol content was .225 g/dl.

Dove filed a cross-complaint against Boaz on March 18, 2024. The record indicates that Boaz evaded service and Dove filed service by publication. On July 21, 2024, Boaz made an appearance through Notice and Acknowledgement of Receipt of Summons and Cross-Complaint, but failed to reply to the cross-complaint. Dove entered a default against Boaz on September 5, 2024. On October 23, 2024, the Court conditionally set aside the default against Boaz. Boaz filed an amended cross-complaint against Dove. The case became at issue after resolution of a series of procedural skirmishes regarding the operative pleadings. In the intervening period, the parties arrived at a settlement agreement with Plaintiff on October 9 2025.

On November 12, 2025, at a hearing on Dove's discovery motion, the Court granted Dove's Motion to Compel Boaz to Respond to Request for Production of Documents, Set One, and for Monetary Sanctions in the amount of \$2,307.50; and also granted Dove's Motion to Compel Boaz to provide Further Responses to Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Admissions, Set One and for Monetary Sanctions in the amount of \$2,425.00.

On November 13, 2025, Boaz filed this Motion to set aside the sanctions awarded and to enforce the settlement agreement. Boaz's motion was supported by a Memorandum of Points and Authorities and Declaration of Boaz. There is no proof of service accompanying the motion. However, Dove filed a timely opposition on February 26, 2026. "[I]t is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of the motion." *Eliceche v. Federal Land Bank Assn. of Yosemite* (2002) 103 Cal.App.4th 1349, 1375. Boaz also filed an *ex parte* application to request to stay enforcement of the sanctions, but the Court denied that application because Boaz failed to properly provide notice.

In this motion, Boaz claims that the discovery motion sanctions imposed against him on November 12, 2025 should be set aside because he had a mistaken belief that the mediation on October 9, 2026 resolved all matters, including the pending discovery motion. He asserts that Cal. Code of Civ. Proc. § 473 allows him to claim relief through mistake or error. He also claims that his refusal to execute a settlement agreement was not necessary, and that the Court should enforce the settlement agreement.

On February 26, 2026, Dove filed an opposition to the Motion asserting the following arguments: Boaz had approximately five months to draft and file an opposition to Dove's discovery motions which were the subject of the November 12, 2025 hearing. Accordingly, Dove can hardly argue that his failure to do the same was due to mistake, inadvertence, surprise, or excusable neglect that is contemplated under Code of Civil Procedure section 473, subdivision (b). Moreover, Boaz's was mistaken in his erroneous belief that Boaz's withdrawal of the cross-complaint against Dove somehow resulted in a withdrawal of the discovery motions pending against him. Since Boaz must be held to the standard of an attorney practicing before the Court, this assumption is not reasonable.

Analyses

Self-Represented Litigant

The Court is aware that Boaz is proceeding without an attorney in this lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the

represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.” *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants.

Boaz Does is Not Eligible for Relief under Section 473:

Under Code of Civil Procedure § 473(b), the Court has discretion to relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect.

Under this section, the Court must consider whether the mistake is excusable. When seeking relief under Cal. Code Civ. Proc. § 473(b) based on mistake, a litigant must generally demonstrate that the mistake was excusable. See *Ron Burns Constr. Co. v. Moore*, (2010) 184 Cal. App. 4th 1406, 1414.

Moreover, “Excusable neglect,” for purposes of section 473, subdivision (b) exists when a reasonably prudent person in similar circumstances might have made the same error. *County of San Bernardino v. Mancini* (2022) 83 Cal.App.5th 1095, 1103.

And, the “inadvertence” contemplated by Section 473(b) does not mean mere inadvertence in the abstract; if it is wholly inexcusable it does not justify relief. *Younessi v. Wolf* (2016) 244 Cal.App.4th 1137, 1147. Inadvertence is a lack of attentiveness, inattention, or fault from negligence. See, e.g., *Dingwall v. Vangas, Inc.* (1963) 218 Cal. App. 2d 108, 113). As with mistake, inadvertence does not warrant relief unless, on consideration of all the evidence, it is excusable. See *Martin v. Taylor*, (1968). 267 Cal. App. 2d 112, 113. Therefore, the moving party must supply the court with reasons for the inadvertence.

Here, the Court must apply the rules of litigation equally to Boaz. A self-represented party, Boaz must be held to “the same restrictive procedural rules as an attorney” and he is “not entitled to special treatment and are [is] required to follow the procedural rules that govern civil litigation.” *McComber v. Wells* (1999), *supra*, 72 Cal.App.4th 512 at 522-523. Applied here, Boaz does not provide the Court with any facts that support that his failure to timely oppose the discovery motion was the result of mistake, inadvertence or neglect that was excusable. He was served with the discovery motions on May 22, 2025. The hearing for the motion was November 12, 2025. Boaz failed to file a timely opposition to the original discovery, despite the five months between motion and the hearing. He cannot now reasonably argue that a dismissal of his cross-complaint operates to dismiss a pending discovery motion. Nothing in the Code of Civil Procedure or the California Rules of Court support this conclusion.

Boaz does not demonstrate that his failure to oppose the discovery motion was the result of mistake, or inadvertence. He was properly served with notice of the motion. He failed to timely file an opposition to the discovery motion. He did not seek leave to file a late opposition. He did not file a motion for reconsideration under Cal. Code of Civ. Proc. § 1008, et. seq. These remedies were available to him, but he chose not to employ relief provided by the law. Held to the standard of a

litigant practicing before the Courts, he cannot now, avail himself of a motion to set aside these sanctions.

The Court finds credible Dove's arguments that Boaz could not have believed that Mr. Dove's discovery motions were withdrawn. Indeed, Boaz was informed by Dove's counsel on October 15 and 16, 2025 that he execute an amended settlement agreement because of his refusal to comply with the parties' settlement agreement. The letter further informed Boaz that his opposition to the motion for further responses was due on October 20, 2025. Boaz knew or should have known that the case, and the motion, was ongoing even after he withdrew his cross-complaint (without prejudice). Held to the standard of It is unreasonable to assume that the withdrawal of a cross-complaint results in Dove's withdrawal of a pending discovery motion. Thus, Boaz does not have grounds for excusable neglect.

The issue of enforcing the mediated settlement agreement is already on calendar for March 18, 2026. In order to preserve judicial resources, the Court defers this issue to hearing of that motion.

Ruling

Defendant Roger Boaz's ("Boaz") Motion to Set Aside Sanctions and Enforce Mediated Settlement Agreement filed on November 13, 2025 is **denied**. Sanctions in the amount of \$2,307.50 and \$2,425.00 and are due within ten (10) days to Dove's counsel.

Dove's counsel shall prepare a proposed order conforming to this ruling and shall file it no later than five (5) days from the date of this hearing, attaching a copy of this tentative ruling.

12. 9:00 AM CASE NUMBER: C23-02906

CASE NAME: KATELYN SCHAEFER VS. BRYAN DOVE

***HEARING ON MOTION IN RE: FOR SANCTIONS AGAINST OPPOSING COUNSEL FOR BAD FAITH CONDUCT**

FILED BY:

TENTATIVE RULING:

Summary

Defendant Roger Boaz ("Boaz") filed a Motion for Order Imposing Sanctions Against Opposing Counsel, Kevin Hermanson is **denied**.

Background

See Line 11 for procedural background, which is incorporated herein. On November 13, 2025, Defendant Roger Boaz ("Boaz") filed a Motion for Order Imposing Sanctions Against Opposing Counsel for Defendant Bryan Dove ("Dove"), Kevin Hermanson, pursuant to Cal. Code of Civ. Proc §§ 128.5 and 2023.030 asserting that Mr. Hermanson conducted bad faith litigation tactics, including coercion, misrepresentation and abuse of process. This motion was supported by a Memorandum of Points and Authorities and Declaration of Boaz. There is no proof of service accompanying the motion. However, Dove filed a timely opposition on February 26, 2026. "[I]t is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of the motion. *Eliceche v. Federal Land Bank*

Assn. of Yosemite (2002) 103 Cal.App.4th 1349, 1375.

On February 26, 2026, Dove filed an opposition asserting several arguments: (1) Boaz fails to attach the supposed exhibits that he relies on his declaration. (2) Boaz improperly relies on legal authority that does not apply to the circumstances alleged in his Motion. (3) Boaz also misrepresents facts that occurred at the parties' October 9, 2025, mediation, and in the underlying suit in an effort to harass Mr. Dove and counsel for Mr. Dove in a case that Boaz admittedly agreed to settle. Dove also requests sanctions in the amount of \$1,400 for opposing this frivolous motion.

Analyses

Self-Represented Litigant

The Court is aware that Boaz is proceeding without an attorney in this lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants.

Boaz Does not Establish a Violation of Section 128.5

Under both Cal. Code of Civ. Proc. § 128.5, and case law interpreting this statute, an action is deemed frivolous or in bad faith so as to justify the imposition of sanctions if it is prosecuted for an improper motive (including harassment or delay), or if it is totally devoid of any merit. The standard of determining whether a lawsuit is frivolous is an objective one: a suit indisputably has no merit only where any reasonable attorney would agree that the action is completely without merit. *Finnie v. Town of Tiburon* (1988), 199 Cal. App. 3d 1.

Under Cal. Code of Civ. Proc § 128.5, a trial court may order a party to pay the reasonable expenses,

including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay. A motion for sanctions brought by a party primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation, shall itself be subject to a motion for sanctions. (Code of Civil Procedure § 128.5(g).) If warranted, the court may award to the party prevailing on the motion the reasonable expenses and attorney's fees incurred in opposing a motion made under section 128.5, subdivision (a). (Code of Civil Procedure § 128.5(f)(1)(C).) A trial court's power to punish should be used most sparingly to deter only the most egregious conduct. An attorney needs only a reasonable and honest belief in the viability of each theory and the evidence supporting that theory, not a conviction his client will prevail, to justify filing a claim or defense. *Campbell v. Cal-Gard Surety Services, Inc.* (1998) 62 Cal. App. 4th 563.

Applied here, Boaz's motion improperly applies Section 128.5 to facts that do not warrant monetary sanctions. Dove contends that Boaz improperly accuses him, his counsel and prior mediator, Chris Appleton of misconduct. (See Boaz Decl., ¶ 4.) However, Cross-Defendant admits that he "does not contend that the mediator misrepresented my position."

Moreover, Boaz does not prove to this Court that the alleged video, which exists, improperly supports bad faith or frivolous tactics. Such actions taken by Dove or his attorney do not support a finding that they were taken to harass or cause unnecessary delay towards the resolution of this action. Overall, Boaz does not establish any facts that support that Dove and his attorney acted in bad faith, or in a manner that amounted to frivolous action against him.

Indeed, applying the standards of a practitioner, the Court finds that Boaz brings this motion without substantial justification and without a factual basis to support bad faith. Such action allows Dove to recover reasonable sanctions against Boaz for this unsupported motion.

Ruling

1. Defendant Roger Boaz ("Boaz") Motion for Order Imposing Sanctions Against Opposing Counsel, Kevin Hermanson is **denied**.
2. The Court finds that Dove is the prevailing party in this Motion. As such, Dove shall recover the amount of \$1,400 as the prevailing party pursuant to Section 128.5(f)(1)(C). Said fees shall be paid no later than ten (10) days from the date of this hearing.
3. Defendant Roger Boaz is ordered to review and consider Cal. Code of Civ. Proc §§ 391(b)(3) and 391.7(a) which state:

391(b) "Vexatious litigant" means a person who does any of the following: (3) In any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay.

391.7(a) In addition to any other relief provided in this title, the court may, on its own motion or the motion of any party, enter a prefilming order which prohibits a vexatious litigant from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed. Disobedience of the order by a vexatious litigant may be

punished as a contempt of court.

4. Dove's counsel shall prepare a proposed order conforming to this ruling and shall file it no later than five (5) days from the date of this hearing, attaching a copy of this tentative ruling.

13. 9:00 AM CASE NUMBER: C24-01952
CASE NAME: MUJEEBULLAH AMINI VS. GENERAL MOTORS, LLC
***HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS**
FILED BY: AMINI, MUJEEBULLAH

TENTATIVE RULING:

Summary

Plaintiff Mujeebullah Amini's ("Plaintiff") Motion for Attorney's fees and Costs against Defendant General Motors LLC ("GM") is **granted** as set forth herein.

Background

Plaintiff pursued this case against GM pursuant to the Song-Beverly Consumer Warranty Act. Plaintiff claims that he purchased a 2021 Cadillac Escalade ESV ("Vehicle") on April 10, 2023. Per the purchase agreement, the agreed upon value of the Vehicle was \$118,168.24. The Vehicle came equipped with GM's Certified Pre-Owned Bumper-To-Bumper Limited and Certified Pre-Owned Powertrain express warranties. The Vehicle also came with an implied warranty of merchantability, by operation of law. Plaintiff alleged that he was damaged and brought various claims, including claims under Civil Code § 1794 for breach of the implied warranty of merchantability and express warranty. On April 15, 2025, GM served a 998 Offer of \$205,000 plus \$20,000 in attorneys' fees and costs, or fees to be determined by motion. Plaintiff accepted GM's 998 offer on April 23, 2025, with Counsel electing to pursue fees by motion. Plaintiff filed a notice of settlement on May 1, 2025.

On November 5, 2025, Plaintiff filed this Motion to recover attorney's fees and costs pursuant to Cal. Civil Code § 1794(d) and Cal. Code of Civ. Proc ("CCP") § 998 against GM. This motion is made on the grounds that Plaintiff is the prevailing party under the Song-Beverly Consumer Warranty Act and the terms of the CCP § 998 Offer to Compromise accepted by Plaintiff on April 23, 2025, which entitles Plaintiff's counsel includes a declaration to support attorney fees, costs, and expenses incurred in bringing this case against GM. As the prevailing party, Plaintiff seeks an award of attorneys' fees in the amount of \$43,319.00. Plaintiff also incurred costs and expenses totaling \$2,875.03. In total, Plaintiff requests an award of fees and costs in the amount of \$46,194.03.

On February 26, 2026, GM filed an opposition, supported by declaration of counsel, Matthew Dobson. Dobson's declaration contains a 1562 pages. Some of the attached documents include discovery in other cases not related to this case, meet and confer letters unrelated to this case, and miscellaneous other documents that are not related to this case and submitted for the purposes of comparison. The Court did not review every single page of this declaration, and spot checked what it thought was relevant information. Indeed, it is not the job of the Court to sift through over a thousand pages of discovery, meet and confer letters and other irrelevant documents that Defense counsel could have better summarized by counsel. If the Court was interested in unrelated pleadings from other cases, which it is not, the Court would have requested supplemental briefing. Such purposeful overload of

irrelevant paperwork places additional burden on the already strained judicial resources of the Court. Counsel is strongly admonished to refrain from repeating such unwelcomed tactics in the future.

Separating the wheat from the chaff, GM asserts that the fees should be reduced under the following arguments: (1) that the fee request is untimely, (2) Counsel should not be compensated for pursuing fraud claims; (3) Counsel's fees are not reasonable; and (4) Some costs are not recoverable.

Plaintiff's request for Judicial Notice is granted as unopposed. The court, however, does not take judicial notice of the truth of any hearsay statements contained in any of the documents.

Analyses

Civil Code section 1794, subdivision (d) provides that "[i]f the buyer prevails in an action [pursuant to Song-Beverly], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code § 1794, subd. (d).)

Importantly, the "costs and expenses" remedy contained in section 1794 is "cumulative" to other remedies afforded to Plaintiff by California law, including the general cost statutes contained at sections 1032 through 1034 of the Code of Civil Procedure. (Civ. Code, § 1790.4) ["The remedies provided by this chapter are cumulative"].) As a result, Plaintiff is entitled to recover "costs and expenses, including attorney fees based on actual time expended," even if Plaintiff is not entitled to recover costs under section 1032.

Moreover, Plaintiff is also entitled to recover attorney fees as costs authorized by Cal. Code of Civ. Proc § 1032, which states in relevant part: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) "(a) The following items are allowable as costs under Section 1032: (10) Attorney's fees, when authorized by any of the following: (A) Contract, (B) Statute, (C) Law." (Code Civ. Proc., § 1033.5, subd. (a).) "'Prevailing party' includes the party with a net monetary recovery " (Code Civ. Proc., § 1032, subd. (a)(4).)

In reviewing the declarations provided by Counsel, the relevant statutory and decisional authority, and reviewing the amount of hours spent on this case, considering the *Lodestar* factors, including the experience of counsel, the hourly rates, the Court finds that Plaintiff is entitled to reasonable costs and attorney's fees.

In analyzing the Declaration of David Barry with an eye to reasonableness of fees, the Court finds that some efficiencies could have been achieved by avoiding overlapping work done by six billing attorneys on this file. As such, the Court finds that a ten percent reduction of fees is warranted to account for the inefficiencies of reviewing the work of less-experienced attorneys, and having multiple senior attorneys working on this file, which result in overlap and inefficiencies. Accordingly, a reduction of \$4,332 is appropriate and reasonable, resulting in attorney's fees in the amount of (\$43,319- \$4,332) \$38,987.

After reviewing the costs incurred, the Court finds that the costs \$2,875.03 are reasonable and warranted. The total amount of fees and costs are \$41,862.03. The Court finds good cause to award

these fees and costs to Plaintiff as prevailing party against GM.

Ruling

1. Plaintiff Mujeebullah Amini's ("Plaintiff") Motion for Attorney's fees and Costs against Defendant General Motors LLC ("GM") is granted.
2. GM shall pay to Plaintiff the amount of \$41,862.03 no later than ten (10) days from the date it is served with a copy of the Court's order.
3. The Court shall execute the Proposed Order lodged with the Court on November 5, 2026.

14. 9:00 AM CASE NUMBER: C24-02919

CASE NAME: NICOLE LITTLE VS. JOHN MUIR HEALTH

HEARING ON SUMMARY MOTION

FILED BY: JOHN MUIR HEALTH

TENTATIVE RULING:

The hearing is **continued** to April 22, 2026, at 9:00 a.m. in this Department to allow for supplemental briefing, as outlined below.

John Muir Health has moved for summary judgment on the grounds that plaintiff's claims are barred by the workers' compensation exclusivity rule (Labor Code §§3600-3602) because John Muir was plaintiff's "special employer." (Labor Code, § 3602 (d)(1)-(2).) John Muir argues plaintiff's "general employer," Cross Country, provided her with workers' compensation benefits pursuant to the contract with John Muir and, therefore, John Muir, as the "special employer" is not "subject to [...] tort liability in the event of employee injury [...]."

Plaintiff opposes the motion, arguing she was not John Muir's employee.

Though neither side here explicitly invokes Labor Code, section 2775, subdivision (b)(1), it appears that section supplies the test for whether plaintiff qualifies as an employee of John Muir. That section states:

For purposes of this code [...] a person providing labor or services for remuneration shall be considered an employee rather than an independent contractor unless the hiring entity demonstrates that all of the following conditions are satisfied:

(A) The person is free from the control and direction of the hiring entity in connection with the performance of the work, both under the contract for the performance of the work and in fact.

(B) The person performs work that is outside the usual course of the hiring entity's business.

(C) The person is customarily engaged in an independently established trade, occupation, or business of the same nature as that involved in the work performed.

(Lab. Code, § 2775 (b)(1).)

This test, also known as the "ABC test" set forth in *Dynamex Operations West, Inc. v. Superior Court* (2018) 4 Cal.5th 903, 916-917, was codified in 2019 by the California Legislature. (*Castellanos v.*

State of California (2024) 16 Cal.5th 588, 597.) The test does not rely on intentions or contractual labels but instead focuses on specific criteria to classify a worker as an independent contractor. Section 2775 does not exempt workers' compensation cases. Any judicially created standard does not override the statutory framework in Section 2775 to determine employment status under the Labor Code. This encompasses all relevant sections of the Labor Code, including those related to the workers' compensation exclusivity rule and dual employment situations.

Parties shall provide supplemental briefing to address this statutory presumption, which, in the Court's view, may negate the importance of the following factual questions: (1) whether parties contemplated the length of the assignment (see Additional Material Fact No. 15), (2) plaintiff's "consent" to designation as "employee" of John Muir (see Additional Material Fact Nos. 17-18), and (3) any labels in John Muir's contract with Cross Country designating providers supplied by the agency as either employees or independent contractors (see Additional Material Fact No. 19, 22).

The hearing is continued to April 22, 2026. John Muir's supplemental brief (not to exceed ten double-spaced pages) shall be due and e-filed no later than March 25, 2026. Plaintiff's responsive brief (not to exceed ten double-spaced pages) shall be due and e-filed no later than April 8, 2026. Any reply (not to exceed five double-spaced pages) shall be due and e-filed on April 15, 2026. No additional evidence shall be submitted.

15. 9:00 AM CASE NUMBER: C25-00687
CASE NAME: MIHAELA CROSSMAN VS. GREG WALLACE
***HEARING ON MOTION IN RE: SET ASIDE VOID DEFAULT AND QUASHING SUMMONS FOR LACK OF PERSONAL JURISDICTION**
FILED BY: WALLACE, GREG
TENTATIVE RULING:

Plaintiff Mihaela Crossman dismissed this case without prejudice on March 3, 2026. This Motion to set aside Default and Quashing Summons is vacated. The CMC, Line 2, is also vacated. No appearance is required at the hearing on March 11, 2026.

16. 9:00 AM CASE NUMBER: C25-00711
CASE NAME: ROBERT MURLEY VS. ROBERT RICHIE
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: SOFIA MINASSIAN, ESQ.**
FILED BY: MURLEY, ROBERT JACK
TENTATIVE RULING:

This Motion is moot. Plaintiff's counsel, Sofia Minassian, Esq. of the Sedaghat Law Group filed a motion to be relieved as Counsel on November 14, 2025. However, on February 24, 2026, the same law firm served notice of change of handling attorney representing Plaintiff Robert Murley. The hearing on this motion is vacated. No appearance is required at the March 11, 2026 hearing.

17. 9:00 AM CASE NUMBER: C25-03466
CASE NAME: TUNED IMPORTS B.V., VS. ALL WEST COAST SHIPPING, INC.,
HEARING IN RE: THE EX PARTE APPLICATION FOR OUR MOTION TO BE RELIEVED AS COUNSEL
FILED BY:

TENTATIVE RULING:

Summary

Defendant's counsel, Commins Knudsen and Chao, APC, by and through David H.S. Commins, Esq., filed a Motion to Be Relieved as Counsel for Defendant All West Coast Shipping, Inc. ("Motion"). The Motion is **granted** as set forth herein.

The Court scheduled the Case Management Conference to trail this Motion. Counsel are ordered to appear for the Case Management Conference at 9:00 a.m. in Department 16.

Background

This is a business tort and unfair business practice case related to a dispute about import and storage of 26 vehicles owned or held by Plaintiff Tuned Imports B.V. for third parties against Defendant All West Coast Shipping, Inc.

Defendant's Counsel represents to the Court that there has been a breakdown in the attorney client relationship with his client, All West Coast Shipping, Inc., which renders representation ineffective. Specifically, Alex Naumov, Chief Operating Officer of Defendant All West Coast Shipping (WCS) sent counsel correspondence expressing his desire that his firm cease to represent WCS and instructing them to communicate to the Court that my firm no longer represented WCS. On January 14, 2026, Defendant's Counsel filed this Motion to Withdraw.

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Defendant's Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Defendant's Counsel. The Court acknowledges that the prejudice to Defendant exists. While this case was filed in 2025 and no trial date has been set, Defendant is required retain counsel to comply with the Court's orders.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record. The makes the following orders:

1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted on January 14, 2026. The withdrawal is effective immediately.
3. Defendant's Counsel is ordered to serve a copy of this Order (MC-053) to Defendant by mail at its last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill-out and file the change of address form with the Court.
4. Defendant's counsel shall file a proof of service form indicating that the client was served with the Court's Order (MC-053) and the Change of Address form (MC-040).

18. 9:00 AM CASE NUMBER: MS5031

CASE NAME: PETITION OF: PARAQUAT CASES

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: CHEVRON U.S.A. INC

TENTATIVE RULING:

Summary

Defendants Chevron U.S.A. Inc., Syngenta AG, Syngenta Crop Protection LLC and Wilbur-Ellis Company LLC (collectively, "Chevron Defendants" Special Demurrer to the complaint filed in *Laster et al. v. Syngenta AG et. al*, Case No. CGC-25-631013, and Contra Costa County Case No. MS5031, is **sustained** without leave to amend. No timely opposition was filed by any other party to this case. No appearance is required at the March 11, 2026 hearing.

Background.

On January 16, 2026, the Chevron Defendants filed a Special Demurrer in this action on the grounds that there is a "misjoinder of parties" pursuant to Cal. Civ. Code §§ 378 (a)(1) and 430.10. Chevron Defendants claim that sixteen (16) Plaintiffs are improperly joined in one complaint because their claims do not arise out of the same transaction, occurrence, or series of transactions under Section 378. Even if joinder were proper, Chevron Defendants requests that this court exercise its discretion to require the 16 Plaintiffs to file separate complaints. This Motion was supported by Notice, Memorandum of Points and Authorities, and Request for Judicial Notice. The Request for Judicial Notice is granted.

No timely opposition was filed.

Analysis

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes

waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779,784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose this demurrer by any party is a deemed to consent to the sustaining of this demurrer without leave to amend.

Ruling

Chevron Defendant's Demurrer to the Complaint in *Travis Laster et al v. Syngenta AG, Et. Al* is **sustained** without leave to amend. Chevron Defendants shall prepare a proposed order conforming to this ruling and e-file with the Court no later than ten (10) days from the date of the hearing. No appearance is required at the hearing on March 11, 2026.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C24-03380

CASE NAME: GREGORY SMITH VS. FCA US LLC

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFFS FURTHER RESPONSES TO DEFENDANT FCA US LLC'S SPECIAL INTERROGATORIES, SET ONE**

FILED BY: FCA US LLC

TENTATIVE RULING:

Defendant and moving party, FCA US LLC, **vacated** this motion on February 26, 2026. No appearance is required at the hearing on March 11, 2026.

20. 9:01 AM CASE NUMBER: C24-02490

CASE NAME: SCOTT DINSDALE VS. CARDIGAN, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL THE DEPOSITION OF DEFENDANT CARDIGAN, INC.'S EMPLOYEE JHOSELIN LOPEZ CISNEROS**

FILED BY: DINSDALE, SCOTT A.

TENTATIVE RULING:

Summary

Plaintiff Scott A. Dinsdale ("Plaintiff")'s Motion to Compel the Deposition of Defendant Cardigan, Inc.'s employee, Jhosselin Lopez Cisneros, is **granted** as set forth herein.

Furthermore, on the Court's own motion, the Court **vacates** the following discovery hearings scheduled on the following dates and refers them to a discovery referee to be jointly appointed by the Parties, as set forth herein:

1. April 15, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan Inc. to Form Interrogatories, Set One.
2. April 15, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan, Inc. to Form Interrogatories, Set Two.
3. April 15, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan, Inc. to Form Interrogatories, Set Three.

4. April 22, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan, Inc. to Request for Production of Documents, Set One
5. April 22, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan, Inc. to Special Interrogatories, Set One.

Background

On August 26, 2025, Plaintiff filed a Motion to Compel the Deposition of Defendant Cardigan, Inc. ("Defendant" or "Cardigan") employee, Josselin Lopez Cisneros. The Motion is accompanied by a Notice, Amended Notice served on September 19, 2025, a Memorandum of Points and Authorities, and Declaration of Stacia C. Hoogstraal. The motion asserts that on July 15, 2025, Plaintiff noticed the deposition of Cardigan's finance manager, Jhosselin Lopez Cisneros. Two days later, Cardigan's counsel claimed that Ms. Lopez Cisneros was not available, but would make her available during a mutually available date. After meeting and conferring, Cardigan's counsel did not respond to make Ms. Lopez Cisneros available.

Analysis

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v. Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Meet and Confer Requirements

The parties to a discovery dispute are required to meet and confer, a reasonable and good faith attempt, to informally resolve any dispute concerning discovery. See Cal. Code Civ. Proc. §§ 2016.040, 2030.300, *Golf & Tennis Pro Shop, Inc. v. Sup. Ct.* (Frye) (2022) 84 Cal.App.5th 127, 138. In addition to the statutory requirements that obligate counsel to meet and confer on a discovery motion, Contra Costa County Superior Court local rules require the same. See L.R. 2.121(e). Additionally, the Court's local rules states that motions "should be filed sparingly, in good faith and when the issue(s) cannot be otherwise resolved." L.R. 2.122(c).

Here, the record submitted to the Court show that Plaintiff's counsel made two attempts by e-mail to solicit available dates for the deposition of Ms. Lopez Cisneros. Defendant's counsel, Andrew Sterns, did not respond to either attempts to meet and confer.

Motion to Compel Deposition is Warranted

The Court finds that Plaintiffs' notice of deposition and the accompanying request for production of documents are relevant, as the items sought are reasonably calculated to lead to the discovery of admissible evidence. Ms. Lopez Cisneros is the finance manager who presumably has information that will lead to the discovery of admissible evidence.

Cal. Code of Civ. Proc. § 2025.410 states that if the party who served with a deposition notice with an irregularity does not serve a written objection, the party waives any error or irregularity. Section 2023.010(d) makes is a misuse of the discovery process to fail to "respond or to submit to an authorized method of discovery."

Here, Defendant's counsel failed to object to the Notice of Deposition, and failed to respond or submit to the deposition by neglecting to respond to Plaintiff's counsel. Furthermore, Cardigan failed to oppose this motion.

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that Cardigan's failure to timely oppose the Motion to Compel Deposition of Jhosselin Lopez Cisneros is a deemed to be consent to the motion. As such, there is good cause to grant the Motion.

Discovery Referee is Necessary.

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. Before making a motion to

compel, counsel are advised to consider carefully whether doing so is truly worthwhile. “Motions to compel should be considered a last resort when trying to prepare a case for trial.” California Civil Discovery Practice (4th ed Cal CEB) §15.32.C. Additionally, “trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes.” California Civil Discovery Practice (4th ed Cal CEB) §15.38.6. Here, Counsel appeared to have met and conferred, but are unable to resolve the discovery disputes before Plaintiff filed its motions.

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Cal. Code of Civ. Proc. §§639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. The Court finds that the multiple discovery motions, the existing disputes raised by the pending discovery motions and nature of underlying legal issues, require discovery reference. Cal. Code of Civ. Proc. Section 639(a)(5) states: “When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.”

The Court finds, here, that a discovery referee is necessary to hear and determine all disputes relevant to discovery. The Court makes this finding on the grounds that there are five (5) pending discovery motions on calendar in the matter, scheduled for April 15 and 26, 2026 moving papers to date, without oppositions filed, contain 474 pages of documents. The Court finds that Counsel are unable to effectively meet and confer to arrive an informal resolution of the discovery disputes without intervention of the Court. Accordingly, the parties would benefit from the appointment of a discovery referee.

Based on the foregoing, the Court finds good cause to make the following findings and orders.

Ruling

1. Plaintiff’s Motion to Compel the Deposition of Defendant Cardigan’s Employee, Jhosselin Lopez Cisneros is **granted**. Defendant shall make Ms. Lopez Cisneros available for deposition no later than April 10, 2026 at a time and place designated by Plaintiff’s counsel. The date may be extended by written stipulation of the parties.
2. The deposition of Ms. Lopez Cisneros shall take place from day-to-day, except weekends and court holidays, until completed and shall not start earlier than 9:00 a.m. and shall not end later than 5:00 p.m.
3. The Court appoints a Discovery Referee to hear all discovery motions that are pending, and all further discovery motions filed in this matter.
4. By no later than March 20, 2026, the Parties are ordered to meet and confer pursuant to Cal.

Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order appointing a proposed individual who will serve as a discovery referee to the Court along with the proposed referee's curriculum vitae and fee schedule.

5. If the Parties are unable to jointly agree to a proposed Discovery Referee by March 20, 2026, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their *curriculum vitae* to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by Monday, March 30, 2026. The Court will select one of the proposed referees by unreported minute order.
6. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.
7. No party has established an economic inability to pay a pro rata share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.
8. The Court orders that that the following motions are **vacated** and referred to the Discovery Referee. The clerk of the court shall vacate the following hearings:
 - April 15, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan Inc. to Form Interrogatories, Set One.
 - April 15, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan, Inc. to Form Interrogatories, Set Two.
 - April 15, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan, Inc. to Form Interrogatories, Set Three.
 - April 22, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan, Inc. to Request for Production of Documents, Set One
 - April 22, 2026: Plaintiff's Motion to Compel Further Responses from Defendant Cardigan, Inc. to Special Interrogatories, Set One.
9. Plaintiff's counsel shall prepare and e-file a proposed order conforming to the foregoing no later than ten (10) days from the date of order and shall attach a copy of this tentative ruling.
10. The Parties are ordered to meet and confer to take all necessary and appropriate action to effectuate and implement the foregoing orders.

21. 9:01 AM CASE NUMBER: C24-01512

CASE NAME: TINA DUNAWAY VS. MECHANICS BANK

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF'S
INTERROGATORIES**

FILED BY: DUNAWAY, TINA

TENTATIVE RULING:

This motion is continued to July 8, 2026 at 9:00 a.m. by stipulation of the parties, and order of the Court executed on March 3, 2026. No appearance is required at the hearing on March 11, 2026.

22. 9:01 AM CASE NUMBER: C24-01512

CASE NAME: TINA DUNAWAY VS. MECHANICS BANK

***HEARING ON MOTION FOR DISCOVERY COMPEL PRODUCTION OF DOCUMENTS, FURTHER
DISCOVERY RESPONSES**

FILED BY: DUNAWAY, TINA

TENTATIVE RULING:

This motion is continued to July 8, 2026 at 9:00 a.m. by stipulation of the parties, and order of the Court executed on March 3, 2026. No appearance is required at the hearing on March 11, 2026.